



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 8, 2020

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 201804621 regarding Police Officer Jonathan Cancel, Tax No. [REDACTED] (DADS No. 2019-20622) and Police Officer Robert Delaney, Tax No. [REDACTED] (DADS No. 2019-20623)

Dear Mr. Darche:

After reviewing the facts and circumstances in this case, the Police Commissioner has determined that Police Officer Cancel and Police Officer Delaney will receive no disciplinary action for searching the complainant. Upon responding to the restaurant for a disorderly person refusing to leave the location, the respondents found the complainant asleep at a table. After awakening, the complainant attempted to punch PO Delaney and a conducted electrical weapon was used on the complainant. At this juncture the complainant had committed the offenses of trespass and attempted assault. The complainant was then handcuffed, searched and removed to [REDACTED] Hospital.

The Respondents justifiably searched the complainant because their actions were consistent with Patrol Guide Procedure 221-13 (Mentally Ill or Emotionally Disturbed Persons). Step 39 of that Procedure directs a Uniformed Member of the Service to "remove property that is dangerous to life or will facilitate escape" after an emotionally disturbed person has been restrained and prior to that person being removed to the hospital. It should be noted that the complainant had a screwdriver on his person that was discovered because of the searches.

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Website: <http://nyc.gov/nypd>

Therefore, no disciplinary action will be taken against Police Officer Cancel and Police Officer Delaney.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'Cecil Wade', with a stylized, flowing script.

Cecil Wade
Deputy Chief
Commanding Officer
Police Commissioner's Office